

Petitioner v. State of U.P. And 4 Others

High Court of Judicature at Allahabad · Division Bench · 6 October 2025 · Writ-C No. 33319 of 2025 · **Writ disposed of; Article 226 declined; statutory remedy left open.**

HEADNOTE

A writ confined to a demand notice issued as recovery of an unchallenged order under Section 135 of the Electricity Act, 2003 is not entertainable. Unless the primary order creating the demand is challenged, the High Court will not examine the consequential recovery. Adequate statutory remedy under the Act read with the U.P. Electricity Supply Code, 2005 remains open.

FACTUAL SUMMARY

The petitioner invoked Article 226 against a demand notice dated 30 August 2025 issued by respondent no. 5 of the distribution corporation. Counsel for the licensee objected that the notice was only recovery pursuant to an order under Section 135 of the Electricity Act, 2003, which had not been challenged. Relief was sought against the recovery communication alone. The Division Bench heard the writ on 6 October 2025.

HOLDING-UNITS

HOLDING-UNIT · EA2003::135

consequential recovery of unchallenged s.135 demand

HOLDING

Where a demand notice is raised pursuant to an order under Section 135 of the Electricity Act, 2003, a writ confined to the consequential recovery cannot be entertained unless the primary order creating the demand is also challenged. Article 226 interference was declined. The petitioner was left to the statutory remedy under the Act read with the U.P. Electricity Supply Code, 2005; if availed within three weeks, that remedy is to be decided on merits without prejudice from this order. ¶ 2-4

PRINCIPLE TAGS

s135-arrest-safeguards-and-compounding-remedy A writ confined to a demand notice issued as recovery of an unchallenged order under Section 135 of the Electricity Act, 2003 is not entertainable. Unless the primary order creating the demand is challenged, the High Court will not examine the consequential recovery.. ¶ 2-4

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — VALIDITY OF THE SECTION 135 ORDER AND OF THE DEMAND NOTICE DATED 30.08.2025

Merits left to statutory remedy; no finding on the bill or the primary order. ¶ 3-4